

Mandate After Stay Denial

Rule 41 date

The institutional respondent timely moved to stay mandate on October 23, 2025. The court denied that motion on November 5. Rule 41(b) makes mandate due seven days after entry of the denial when that date is later than the otherwise applicable schedule. November 12, 2025 is seven calendar days after November 5, and no weekend, holiday, or later order changes the calculation.

The clerk has verified the September 9 opinion and judgment, the stay motion, the denial order, and the absence of a further qualifying event. The motion itself did not constitute a granted stay, but its timely filing and later denial supplied the express Rule 41(b) timing path. The alternative order granting a bounded stay is not part of this docket history and cannot be combined with the denial.

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Opinion and judgment issued

The September 9 opinion and seven-component judgment are issued as mandate on November 12, 2025. The agency receives the same remand instructions stated in the opinion: evaluate supported risk pathways in combination, apply the full acquiescence standard, address legally significant evidence, and make any necessary findings in the first instance. Record-correction and proffer-exclusion components remain effective.

Issuance does not decide the merits of a possible certiorari petition and does not alter the court's denial of affirmative stay relief. The clerk shall serve both parties, close the mandate stage, and retain the October 23 motion and November 5 denial as the events establishing the later date.